

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Marvin Neuman,

Plaintiff,

– against –

David Echevarria and Richard Capuano,

Defendants.

Index No.

Summons

Commenced by E-Filing

Venue is based on defendant's
residence

To the above named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's Attorney within **twenty (20)** days after the service of this summons, exclusive of the date of service (or within **thirty (30)** days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 23, 2016

LAW OFFICE OF MICHAEL G. O'NEILL



By: Benjamin L. Federici, Esq.
Attorneys for Plaintiff
30 Vesey Street, Third Floor
New York, New York 10007
(212) 581-0990

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Marvin Neuman,

Plaintiff,

- against -

David Echevarria and Richard Capuano,

Defendants.

Index No.:

Complaint and Jury
Demand

Plaintiff, by his attorney, Michael G. O'Neill, states for his complaint against defendants as follows:

1. This is an action alleging violation of plaintiff's civil and constitutional rights and violation of state tort laws governing false arrest, assault and unlawful imprisonment.
2. Venue is proper in this Court because one or more defendants are residents of Queens County.
3. Plaintiff is an individual and resides in the State of New York.
4. Defendant David Echevarria (Shield No. 2189) is an employee of the New York City Police Department and resides in Queens County.
5. Defendant Richard Capuano is a New York City Marshal and resides in New York County.
6. On March 25, 2013, shortly after noon, plaintiff was on his way home from Manhattan and exited the 7 train at the Bliss Street Station. That evening was the First Day of Passover, which began at sundown, and plaintiff had plans of observing the holiday with family.

7. After exiting the train, plaintiff walked to his car and encountered a tow truck in the process of towing plaintiff's vehicle. Also in the vicinity of plaintiff's car, defendant Capuano and three of his agents or employees were sitting in an SUV. Capuano's window was lowered, and Capuano asked plaintiff if the car being towed belong to him. Plaintiff approached Capuano and began inquiring why the car was being towed.

8. At some point in the conversation, two of the three individuals in the SUV, who were Capuano's employees and/or agents, exited the SUV and struck plaintiff in the chest several times. This assault caused plaintiff injuries.

9. The employees/agents then returned into the SUV and Capuano and the individuals left the scene.

10. Plaintiff called 9-1-1 to report the assault and waited over an hour for the police to arrive.

11. Eventually, Sergeant Echevarria arrived on the scene.

12. Echevarria refused to talk to plaintiff or take any information from him concerning the assault. Rather, Echevarria radioed to Marshal Capuano for the Marshal's location.

13. Sergeant Echevarria then met with Marshal Capuano. Following the meeting, Echevarria returned to plaintiff's location. Without conducting any further investigation into the assault, the Sergeant arrested plaintiff for obstructing governmental administration.

14. Plaintiff was held in custody until about 4 pm on March 26, 2013, at which time he was released. Plaintiff spent about twenty-five hours in custody. Thereafter, all charges were dismissed against plaintiff.

15. On October 2, 2013, plaintiff filed state and federal claims against defendant Capuano in an action in the United States District Court for the Eastern District of New York.

16. On December 21, 2015, District Judge William F. Kuntz, II dismissed the federal claims against Capuano and declined to exercise supplemental jurisdiction over the state law claims.

Claim One.

17. Defendant Echevarria violated plaintiff's constitutional right to be free from unreasonable searches and seizures by arresting plaintiff without a warrant and without probable cause to effectuate the arrest.

18. Defendant Echevarria was acting under color of state law when he caused plaintiff to be arrested falsely.

19. Defendant Echevarria is liable to plaintiff for his damages under 42 U.S.C. §1983.

Claim Two.

20. Capuano provided false information and/or persuaded and conspired with Echevarria to have plaintiff arrested falsely.

Claim Three.

21. The individuals in the SUV assaulted and battered plaintiff causing plaintiff injuries.

22. The individuals in the SUV are employees and/or agents of Capuano and

Capuano is vicariously liable for their tortious acts.

23. When Capuano's employees and/or agents assaulted plaintiff they were acting within the scope of their employment. In addition, Capuano acquiesced in, permitted, allowed and ratified their behavior.

WHEREFORE, plaintiff demands judgment for all relief permitted by law, including but not limited to awarding plaintiff a money judgment for his damages, awarding appropriate equitable and injunctive relief, awarding plaintiff punitive damages, awarding pre-verdict, post-verdict and prejudgment interest and costs, awarding to plaintiff a statutory attorneys' fee and granting such further and additional relief as the Court deems just and appropriate under the circumstances.

Dated: New York, New York
March 23, 2016

LAW OFFICE OF MICHAEL G. O'NEILL



by: Benjamin L. Federici. Esq.
Attorneys for Plaintiff
30 Vesey Street, Third Floor
New York, New York 10007
(212) 581-0990

Jury Demand

Plaintiff demands trial by jury on all issues.

Dated: New York, New York
March 23, 2016

LAW OFFICE OF MICHAEL G. O'NEILL



By: Benjamin L. Federici, Esq.
Attorneys for Plaintiff
30 Vesey Street, Third Floor
New York, New York 10007
(212) 581-0990